

Defendant argues that the unfair competition claim (cause of action nine) fails because the other claims fail. Since the Court finds that Plaintiff has alleged other claims against Defendant, the demurrer to this claim is overruled.

Reply

For the first time in reply, Defendant argues that all causes of action fail because there are no allegations that Defendant was on notice as to Plaintiff's complaints or Greer's alleged conduct. This issue should have been raised in the moving papers and the Court will not consider it now.

Judicial Notice

Plaintiff's requests for judicial notice are granted.

8. 9:00 AM CASE NUMBER: C25-00220
CASE NAME: FRANCIS FANELLI VS. MICHAEL BENJAMIN
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: FANELLI, FRANCIS
TENTATIVE RULING:

Before the Court is a motion by plaintiff Francis Fanelli for leave to file a first amended complaint. For the reasons set forth, the motion is **granted**. Plaintiff shall file and serve his first amended complaint by **no later than July 24, 2026**.

Background

Plaintiff Francis Fanelli filed his complaint initiating this action on January 25, 2025. His original complaint alleges that on March 19, 2024, defendants' 14-year old son was walking their 80 pound German Shepherd. He alleges that the dog has a history of aggression and attacks on neighbors, that the son lost control of the dog which was no longer restrained by a leash, and that the dog attacked, knocked down, and bit Plaintiff and Plaintiff's small dog, injuring both of them. (Compl. ¶¶ 7-10.) The original complaint alleges three causes of action against defendants Michael Benjamin and Qing Jin, the alleged owners of the dog and parents of the 14-year old, including negligence, vicarious liability as the parents of the minor, and strict liability for violation of the Contra Costa County leash law.

Plaintiff filed his motion for leave to file a first amended complaint on March 9, 2026. Plaintiff's proposed first amended complaint (Kraft Decl. Exh. 1) adds a claim for punitive damages. On June 25, 2026, the Court held a case management conference

at which the Court set an issue conference for May 21, 2027 and a jury trial to commence June 1, 2026. Defendants oppose the motion.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"]; Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Analysis

Plaintiff has attached to the Kraft Declaration a redlined version of the proposed first amended complaint ("FAC") marked to show the changes from the original complaint. (Kraft Decl. Exh. 1; Cal. R. Ct., Rule 3.1324(a).) Plaintiff seeks to add a claim for punitive damages, including the factual allegations which he contends supports such a claim, and an additional paragraph in the prayer for relief to include punitive damages. (Prop. FAC ¶¶ 26-34; Kraft Decl. ¶ 6.) Kraft declares that the effect of the amendment is that Plaintiff is seeking to add a claim for punitive damages, which explains why the amendment is necessary, i.e., in order for Plaintiff to attempt to recover punitive damages. (Kraft Decl. ¶ 6; Cal. R. Ct., Rule 3.1324(b)(1) and (2).) Kraft declares in substance that the facts alleged in the proposed FAC to support the punitive damages claim were obtained during discovery (Kraft Decl. ¶ 5), a time frame that is limited in this case; the Court's Odyssey records show the defendants answered the complaint on March 10, 2025, and the motion for leave to amend was filed on March 9, 2026. By implication, the discovery of the new facts alleged during discovery explains why the motion was not made earlier and why the facts were not

included in the original complaint. (Kraft Decl. ¶ 5; Cal. R. Ct., Rule 3.1324(b)(3) and (4).)

A. Sufficient Compliance with California Rule of Court, Rule 3.1324

The Court finds the motion and the Kraft Declaration substantially comply with the requirements of Rule 3.1324. Plaintiff has cited no authority, and the Court is not aware of any authority, which mandates strict compliance with Rule 3.1324 or would support denial of leave to amend for noncompliance in these circumstances.

B. Delay

Defendants argue there was undue delay in Plaintiff moving to amend because Plaintiff was aware of the dog's prior aggressive encounters with both Plaintiff and neighbors before he filed his complaint. (Opp. p. 4; Park Decl. ¶¶ 4-6.) Plaintiff's original complaint alleged those prior incidents. (Compl. ¶¶ 7, 8.)

The Proposed FAC includes additional factual allegations regarding Defendants' knowledge of the dog's dangerous propensities and lack of responsiveness to verbal commands, their knowledge that their son is unable to effectively control the dog and that their son's walking the dog posed risks to other persons and dogs walking in the neighborhood, and their disregard of, or indifference to, the risks their dog, and their son walking the dog, posed to others in light of their knowledge of the dog's aggressive tendencies. (FAC ¶¶ 26-34.) The Kraft Declaration refers specifically to deposition testimony by Defendant Benjamin, by Defendants' son, and by their neighbor, as the information obtained in discovery from which the new allegations and claim for punitive damages spring. (Kraft Decl. ¶ 5.)

The evidence does not support that Plaintiff unduly delayed in moving for leave to amend. In any event, delay alone is generally not a ground for denying leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].)

C. Prejudice

Defendants claim prejudice and cite the trial date which has now been set for June 1, 2027. The trial date was set at a case management conference held on June 25, 2026 at which defendants counsel appeared and which was held one day before they filed their opposition to this motion. Defendants have presented no evidence of prejudice in the Park Declaration in opposition to the motion, only evidence related to alleged delay. (Park Decl. ¶¶ 4-6.) There is no evidence that the amendment will require a delay in the trial date set 11 months from now, that there has been any loss of critical

evidence since the complaint was filed and defendants' answered, that the amendments in the Proposed FAC open an "entirely new field of inquiry," or if they do require new discovery, that Defendants will not have adequate time to propound discovery to address them. (Opp. pp. 3-4.)

Defendants argue in their opposition, without evidentiary support in the Park Declaration, that the fact witnesses have all been deposed, but Defendants do not argue that they will need to conduct additional depositions of any of those witnesses to address the new allegations in the FAC. Merely having to defend the new claim is not the type of prejudice that warrants denial of leave to amend under California's liberal policy of allowing amendments. (*Compare to Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery].)

9. 9:00 AM CASE NUMBER: C25-00423
CASE NAME: VAUGHN BERNARD VS. GONSALVES & SANTUCCI, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: GONSALVES & SANTUCCI, INC.
TENTATIVE RULING:

The unopposed motion of Defendant and Cross-complainant Gonsalves & Santucci, Inc. dba the CONCO Companies (CONCO) for leave to file a First Amended Cross-Complaint is granted. CONCO shall serve notice of entry of this order on all parties and must separately file its First Amended Cross-Complaint within 15 days of today's order.

10. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY SANCTIONS OF \$2,000 SHOULD NOT BE
IMPOSED ON PLAINTIFF'S COUNSEL: JASON W. ESTAVILLO AND ELIZABETH HURWITZ
FILED BY:
TENTATIVE RULING:

Before the Court is its own Order to Show Cause issued to attorneys of record James W. Estavillo (188093) and Elizabeth L. Hurwitz (278846) on May 21, 2026.

The order to show cause stated: